



London Cab Act 1968

1968 CHAPTER 7

An Act to extend the power of the Secretary of State to prescribe fares in respect of journeys by cab within the metropolitan police district and the City of London; to make provision for extending the length of such journeys which the driver of a cab is obliged by law to undertake; to relax restrictions on the parking of cabs; to prohibit the display on certain vehicles in that district or the City of London of signs or notices containing the word "taxi" or "cab" and signs or notices of certain other descriptions; and to restrict the issue, in connection with certain vehicles, of advertisements containing either of those words.

[15th February 1968]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The power of the Secretary of State under paragraph (3) of section 9 of the Metropolitan Public Carriage Act 1869 and section 1 of the London Cab and Stage Carriage Act 1907 (regulations governing cab fares in London) shall include power to prescribe fares for the hire of cabs in respect of all journeys in London whether or not the journey is one which the driver of the cab is obliged by law to undertake.

Power to regulate fares for non-obligatory journeys.
1869 c. 115.
1907 c. 55.

(2) In this section "cab", "fare" and "London" have the same meaning as in the said Act of 1907, and for the purposes of this section a journey shall be treated as a journey in London if it begins and ends there.

Power to
increase
length of
obligatory
journeys.
1853 c. 33.

2.—(1) The Secretary of State may by order direct that for the reference to the distance of six miles in section 7 and paragraph (2) of section 17 of the London Hackney Carriage Act 1853 (being the length of a journey which the driver of a cab is by law obliged to undertake) there shall be substituted a reference to such greater distance as appears to him to be appropriate.

(2) An order under this section may be limited so as to apply only in relation to hirings in respect of journeys which begin, or which end, at such places as may be specified in the order, and may substitute different distances in relation to such hirings or any of them and in relation to other hirings.

(3) The power to make orders under this section includes power to vary or revoke a previous order and shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(4) Before making any order under this section the Secretary of State shall consult with such bodies appearing to him to represent the owners and drivers of cabs as he considers appropriate.

Relaxation of
restrictions
on the
parking
of cabs.
1831 c. 22.

3.—(1) Section 55 of the London Hackney Carriage Act 1831 (which makes it an offence to leave a cab unattended) is hereby repealed.

1831 c. 22.

(2) In section 35 of the said Act of 1831 (under which a cab found standing in any street or place is, in certain circumstances, deemed to be plying for hire) the reference to a street or place shall not include a reference to any parking place for the time being designated by an order in force under the Road Traffic Regulation Act 1967 or to any part of a road the use of which as a parking place is for the time being authorised by an order in force under that Act.

1967 c. 76.

(3) Notwithstanding anything in any enactment whereby the said section 35 has effect in relation to premises of the British Railways Board or the London Transport Board, the reference in that section to a street or place shall not include a reference to any part of those premises which is set aside by the Board concerned as a parking place for vehicles.

Prohibition
of the display
of certain signs
or notices on,
and the issue
of certain
advertisements
in connection
with, private
hire-cars.

4.—(1) There shall not, in the metropolitan police district or the City of London, be displayed on any private hire-car any sign or notice—

(a) which consists of or includes the word “taxi” or “cab”, whether in the singular or plural and whether alone or as part of another word; or

(b) which consists of the words “for hire”, or the form or wording of which is in any other way such as to suggest

that the vehicle on which it is displayed is presently available to take up any passenger wishing to hire it, or would be so available if not already hired.

(2) No advertisement—

- (a) indicating that motor vehicles can be hired on application to a specified address or telephone number, being the address or telephone number of premises in the metropolitan police district or the City of London; or
- (b) on or near any such premises indicating that motor vehicles can be hired at those premises,

shall include the word “taxi” or “cab”, whether in the singular or plural and whether alone or as part of another word, unless the vehicles offered for hire are licensed cabs or the advertisement makes it clear that they are not.

(3) Any person who—

- (a) drives a vehicle in respect of which subsection (1) of this section is contravened or causes or permits that subsection to be contravened in respect of any vehicle; or
- (b) subject to subsection (4) of this section, issues, or causes to be issued, an advertisement which contravenes subsection (2) of this section,

shall be guilty of an offence and liable on summary conviction, in the case of a first offence under the paragraph of this subsection in question, to a fine not exceeding £20 and, in the case of a second or subsequent offence under that paragraph, to a fine not exceeding £50.

(4) Where a person is charged with an offence under paragraph (b) of subsection (3) of this section, it shall be a defence to prove that he is a person whose business it is to publish or arrange for the publication of advertisements and that he received the advertisement in question for publication in the ordinary course of business and did not know and had no reason to suspect that its publication would amount to an offence under that paragraph.

(5) In this section—

“advertisement” includes every form of advertising, whether in a publication or by the display of notices or by means of circulars or other documents or by an exhibition of photographs or a cinematograph film, or by way of sound broadcasting or television, and references to the issue of an advertisement shall be construed accordingly;

“private hire-car” means a motor vehicle, other than a licensed cab or public service vehicle, which is used for the purpose of carrying passengers for hire or reward;

1869 c. 115.
1847 c. 89.

“licensed cab” means a vehicle licensed under section 6 of the Metropolitan Public Carriage Act 1869, section 37 of the Town Police Clauses Act 1847 or any similar local enactment; and

1960 c. 16.

“public service vehicle” has the same meaning as in the Road Traffic Act 1960.

(6) The foregoing provisions of this section shall come into force on such date as the Secretary of State may by order made by statutory instrument appoint.

Short title
and repeals.

5.—(1) This Act may be cited as the London Cab Act 1968.

(2) In paragraph (2) of section 9 of the Metropolitan Public Carriage Act 1869 the words “and the distances to which they may be compelled to take passengers” and the restriction numbered (2) in that section are hereby repealed.